

DPDP 2023

# Digital Personal Data Protection Act, 2023

*Applicable DPDP Acts*

**User Query :** IIT DELHI is selling my data to another company and all my personal identification information is available on public

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*AI-Powered Legal Intelligence Platform*

## APPLICABLE SECTIONS

|            |                                   |
|------------|-----------------------------------|
| Section 3  | Definitions                       |
| Section 5  | Obligations of Data Fiduciaries   |
| Section 11 | Rights of Data Principals         |
| Section 13 | Data Protection Impact Assessment |
| Section 16 | Data Breach                       |
| Section 25 | Penalties                         |

## INTERPRETATION & LEGAL ANALYSIS

*AI-generated legal interpretation*

**1** The Digital Personal Data Protection (DPDP) Act, 2023, governs the processing of personal data in India. In the scenario where IIIT Delhi is selling your data to another company and your personal identification information is publicly available, several provisions of the DPDP Act are applicable.

**2** Definition of Personal Data ( **Section 3** ): Personal data refers to any information about an individual who is identifiable by or in relation to such information. Your personal identification information that is publicly available would fall under this definition.

**3** Obligations of Data Fiduciaries ( **Section 5** ): IIIT Delhi, as a data fiduciary, has obligations to ensure the lawful, fair, and transparent use of personal data. Selling personal data without consent or a lawful basis could be in violation of this section.

**4** Rights of Data Principals ( **Section 11** ): You, as a data principal, have the right to access, correct, and erase your personal data. The availability of your personal identification information on public platforms and its sale without consent likely infringes upon these rights.

**5** Data Protection Impact Assessment ( **Section 13** ): If IIIT Delhi's data processing activities are high-risk, they are required to conduct a data protection impact assessment. Selling personal data to another company could be considered high-risk.

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Data Breach ( **Section 16** ): If your personal data has been made publicly available without authorization, this could be considered a data breach. IIIT Delhi would have obligations to address this breach.

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STRENGTHS & RIGHTS

- 1

**Rights of Data Principals**  
The DPDP Act provides you with rights over your personal data, including the right to access, correction, and erasure.
- 2

**Protections and Safeguards**  
It imposes obligations on data fiduciaries like IIIT Delhi to handle your personal data lawfully and transparently.

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RISKS & OBLIGATIONS

- 1

**Liabilities and Penalties**  
IIIT Delhi may face penalties under **Section 25** for non-compliance with the obligations under the DPDP Act.
- 2

**Compliance Burdens**  
Data fiduciaries must implement robust data protection measures, which can be resource-intensive.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLAINTS AND GRIEVANCE REDRESSAL

1. You can file a complaint with the Data Protection Board (established under the DPDP Act) regarding the misuse of your personal data.

PENALTIES AND COMPLIANCE AUDITS

1. The Data Protection Board can investigate breaches, impose penalties, and conduct compliance audits to ensure adherence to the DPDP Act.
2. In conclusion, IIIT Delhi's actions in selling your data and making your personal identification information publicly available likely contravene several provisions of the DPDP Act, 2023. You have rights under the Act, and IIIT Delhi faces potential liabilities for non-compliance.

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